

County Commissioners Meeting August 4th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=TOgD6d621n0
Publication Date	2025-08-05T02:18:55Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: August 4, 2025

Location: Delaware County Building

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, August 4, 2025, at 9:00 a.m.
- **Attendance:**
 - Commissioners Present: Commissioner Regan, Commissioner Brand, and Commissioner Henry (Presiding Officer/Chair).
 - Members Absent: None.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Employee of the Month Recognitions:**
 - County Building: Cammy Mitchell (nominated by auditor's office staff Ed Carroll and Tanya Dunore for transforming the tax sale department and training staff).

- Justice Center: Danny Rhettz (Delaware County Sheriff's Office, nominated by Mary Addison and presented by Chief Probation Officer Jeff Hanser for safely managing acute juvenile psychiatric transports).
 - **Board Appointments & Updates:**
 - Board of Health: Multiple nominees before the board ahead of their August 14th meeting.
 - Civic Center Authority Board: No status change; noting previous reappointments of Scott Alexander and David Hanower, and the departure of Cherish How due to evening scheduling conflicts.
 - Fair Board: Approved the appointment of volunteer Danielle Castle (who coordinated the "Touch a Truck" event) to the fair board. *(Approved by Voice Vote / Roll Call: Regan - Yes, Brand - Yes, Henry - Yes).*
 - **Approval of Prior Minutes:** Approved the minutes of the July 21, 2025 commissioner meeting with submitted corrections. *(Approved by Voice Vote / Roll Call: Regan - Yes, Brand - Yes, Henry - Yes).*
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4. Substantive Business & Board Action

- **00:07:53 Removal of Solar Moratorium from Table**
 - *Sponsor / Presenter:* Commissioner Brand
 - *Deliberation Summary:* Commissioner Brand provided an update on communications with solar developers (Hawthorne/Albany project, Geronimo Energy/Rorton project, and Hollistine Clean Energy's interest in county and city brownfields, including the old Delco battery site, Borg Warner, and Racer Trust sites).
 - *Action & Vote:* Motion to remove from table and return to table approved. *(Roll Call: Regan - Yes, Brand - Yes, Henry - Yes).*
- **00:09:48 Removal of IU Health Master Agreement from Table**
 - *Sponsor / Presenter:* Board / Pam
 - *Deliberation Summary:* Discussion regarding exploring a marathon clinic alternative similar to what the city signed, while awaiting final clarification on fee-for-service models from IU Health. Commissioners discussed touring the alternative facility location.
 - *Action & Vote:* Removed from table for ongoing review. *(Roll Call: Regan - Yes, Brand - Yes, Henry - Yes).*
- **00:13:01 Authorization Letter for McGriff (True RX & VSP)**
 - *Sponsor / Presenter:* Commissioner Brand / Pam
 - *Deliberation Summary:* Approval of an authorization letter allowing insurance broker McGriff (Marsh McLennan Agency) to act as agent of record and collect documentation from True RX (prescription) and VSP (vision service provider) following the discovery of an unnoted prescription fee agreement with Apex.

- *Action & Vote:* Approved. (Roll Call: Brand - Yes, Regan - Yes, Henry - Yes).
- **00:15:26 Roadway Right-of-Way Dedications (Ashton Land Surveyors)**
 - *Sponsor / Presenter:* Kathy Benise, Ashton Land Surveyors
 - *Deliberation Summary:*
 1. *Phillips Plat (8820 E. Jackson St., Selma):* Request to waive additional right-of-way dedication under the thoroughfare plan to prevent taking the front 15 feet of a historic 1903 home, keeping it within existing INDOT limits.
Approved.
 2. *P&P Acres (5900 S. Burlington):* Road right-of-way dedication along Burlington for a two-parcel split (separating a house/barn from a buildable lot). Approved.
 3. *Miller Subdivision (9661 E. County Road 700 North):* Minor subdivision platting and right-of-way dedication for an R-2 zoned property under 5 acres.
Approved.
 - *Action & Vote:* All three dedication requests approved by voice vote / roll call. (Roll Call for all: Brand - Yes, Regan - Yes, Henry - Yes).
- **00:20:06 Gordon Cox Petition for Return of Land**
 - *Sponsor / Presenter:* Gordon Cox
 - *Deliberation Summary:* Mr. Cox requested the return of property he donated approximately 15 years ago for a planned EMS/fire and police sub-station on 600 West that was never developed, stating he needs access returned to develop his surrounding property. County Attorney Danielle advised on the statutory real estate disposal process.
 - *Action & Vote:* Tabled. (Roll Call: Regan - Yes, Brand - Yes, Henry - Yes).
- **00:23:23 Multi-Hazard Mitigation Plan (EMA)**
 - *Sponsor / Presenter:* John Tino, EMA Director
 - *Deliberation Summary:* Update that FEMA approved the multi-hazard mitigation plan following verbiage revisions by Vantage Point Consulting. The plan will now be distributed to participating and interested small towns for local adoption. A parallel commodity flow study involving railways and roadways is expected by late September.
 - *Action & Vote:* Informational update; received without formal objection.
- **00:25:45 Managing Underwriter Agreement (Baird)**
 - *Sponsor / Presenter:* Commissioner Brand
 - *Deliberation Summary:* Proposal to appoint Baird as the agent of record/managing underwriter for upcoming bond underwriting, coordinating with the auditor, treasurer, council, and Baker Tilly to restart the strategic investment and finance committee, develop comprehensive financial and capital improvement plans, and establish standard financial policies.
 - *Action & Vote:* Approved pending legal review. (Roll Call: Brand - Yes, Regan - Yes).

- **00:30:25 INDOT Construction Change Order No. 6 (Memorial Drive / Butterfield Drive)**
 - *Sponsor / Presenter:* Commissioner Brand
 - *Deliberation Summary:* Change order #6 for the INDOT bridge project on Memorial near the bypass, covering a full-depth restoration of the Butterfield Drive entrance apron (\$31,250 net change, bringing total change orders to \$46,530.92). Funded via 80/20 federal highway funds, with the county's 20% local match amounting to \$2,400 (partially offset by project underruns).
 - *Action & Vote:* Approved. (*Roll Call:* Regan - Yes, Brand - Yes, Henry - Yes).
- **00:30:30 BW Facility Maintenance Agreement (Mental Health Facility)**
 - *Sponsor / Presenter:* Commissioner Brand
 - *Deliberation Summary:* Proposal from builder BW for a 1-year maintenance agreement (\$5,000/month or \$60,000/year, covering 16 hours/week of preventative maintenance, materials, and on-call rate schedules). Commissioners noted contractual questions with the proposed facility operator and opted to table the item to evaluate hiring in-house staff versus contracting.
 - *Action & Vote:* Tabled. (*Roll Call:* Regan - Yes, Brand - Yes, Henry - Yes).
- **00:35:01 Imagine 360 Information Release Authorization**
 - *Sponsor / Presenter:* Commissioner Brand / Pam
 - *Deliberation Summary:* HIPAA-compliant authorization via DocuSign allowing health network provider Imagine 360 information to be shared with McGriff (Marsh McLennan) for county benefit plan administration.
 - *Action & Vote:* Approved. (*Roll Call:* Brand - Yes, Regan - Yes, Henry - Yes).
- **00:35:56 Ordinance 2025-13: New Grant Fund for EMA**
 - *Sponsor / Presenter:* John Tino, EMA Director
 - *Deliberation Summary:* Creation of a non-reverting fund to receive a \$3,000 grant from Duke Energy to purchase weather radios and two wearable personal voltage detectors for highway workers handling downed power lines and trees.
 - *Action & Vote:* Introduced, rules suspended, and adopted unanimously. (*Roll Call for Introduction, Rule Suspension, and Adoption:* Brand - Yes, Regan - Yes, Henry - Yes).
- **00:42:38 Financial Claims, Payroll, and Warrant Approvals**
 - *Sponsor / Presenter:* Ed Carroll / Commissioners
 - *Deliberation Summary:*
 - Review of claim line descriptions; commissioners requested added location details and department usage labels on utility invoices.
 - Payment of general claims totaling **\$3,521,998.74** (including visitor bureau distribution, Daleville BOT payment, various TIF payments, and a major Fountain Square/Camp AC TIF payment of \$1,219,413.89 handled via Old National Bank).
 - Payment of claims totaling **\$10,452.50**.

- Payment of payroll (July 30, 2025) totaling **\$1,482,832.25**.
- *Action & Vote:*
 - General Claims: Approved. (*Roll Call: Regan - Yes, Brand - No, Henry - Yes*).
 - Secondary Claims (\$10,452.50): Approved. (*Roll Call: Brand - Yes, Regan - Yes, Henry - Yes*).
 - Payroll: Approved. (*Roll Call: Regan - Yes, Brand - Yes, Henry - Yes*).

5. Open Public Comment / Citizen Forum

- **00:47:27 Brandy Hoff** (8209 E. County Road 350 North)
Expressed concerns regarding alleged partiality by Commissioner Henry during a drainage board site visit and broadcasted meeting regarding a neighbor's water complaint. Stated she followed state laws, setbacks, and civil liabilities regarding surface water and ponds, and alleged her emails to the commissioner went unanswered.
- **00:51:07 Cheryl Dawson** (Corner of State Road 28 and Wheeling Avenue)
Offered a sincere public apology for accusatory statements made at the previous meeting regarding vague transportation plan line items involving abandoned railroad land. Additionally, requested that the board reconsider how the term "occupied" is defined in the solar ordinance to protect older, currently unoccupied farmhouses that owners intend to fix up.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - *Storage Records:* Discussion with Ed Carroll regarding archiving, retention schedules, and potentially hiring a shredding truck to clear out basement storage.
 - *Mental Health Facility Final Dispersement:* Commissioners reviewed the final dispersement claim for BW Construction (\$254,590.37). Noting it represented about 3% of the contract, commissioners voted to **withhold the 3% retainage** pending delivery of final as-builts, training, and maintenance manuals. (*Motion to hold back retainage passed unanimously by roll call: Brand - Yes, Regan - Yes, Henry - Yes*).
 - *Insurance/Risk Management:* Builder's risk ends today; county risk management insurance via USI and Travelers takes effect.
 - *Justice Center Parking Lot:* South visitor parking lot closed for two weeks starting today for stormwater drainage, inlet additions, and sidewalk/paving repairs.
 - *Road Closures:* East County Road 500 North closed for one day on August 7th between 850 E and 800 E for utility work on bridge structure #103 over Mud Creek.
 - *INDOT "J-Turns" (Reduced Conflict Intersections):* Proposed for 2028 at SR 67/400 South and SR 3/700 South, with plans for public hearings and a scale mockup at the fairgrounds.

- *Township Parks*: Reminded residents that township parks fall under the purview of township trustees, though certain OCAP or Norfolk Southern grants may apply conditionally.
 - *Foundry Row Groundbreaking*: Scheduled for August 7th at 1:00 p.m. on South Cowan Road.
 - *Utility Audit*: Ongoing review with the auditor, Commissioner Brand, and a third-party assessor regarding utility billing and constellation.
 - *Executive Session*: Scheduled for **Thursday, August 7th at 10:00 a.m.** at the county building for contract review and attorney consultation.
 - **Adjournment**: Motion to enter recess approved by voice vote / roll call at [01:03:41](#). (*Roll Call: Brand - Yes, Regan - Yes*).
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